



**Protech - ActivateRail**

MN-05027

# **Phase 1 Determination**

**Acquisition may be put into effect**

25 August 2026

# 1. Determination and statement of reasons

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| <b>Notified acquisition</b>        | Protech Group (Aust) Pty Ltd ( <b>Protech</b> ) proposed acquisition of 100% of the shares of ActivateRail Pty Ltd ( <b>ActivateRail</b> ) (the <b>Acquisition</b> ).                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| <b>Determination</b>               | The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| <b>Parties to the Acquisition</b>  | <p>The acquirer, Protech, is an Australian based labour hire provider to technical industries including renewables, building and construction, civil construction and infrastructure, industrial maintenance and engineering, mining and resources, traffic management, rail operations, asphalt and road surfacing, warehousing and manufacturing and defence. Quantum Safety Pty Ltd (<b>Quantum Safety</b>), a wholly owned subsidiary of Protech, supplies rail safety and site management and supervision services in New South Wales and Queensland.</p> <p>The target, ActivateRail, supplies rail safety and site management and supervision services to utilities, engineering and professional service organisations, primarily in Victoria.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| <b>Overlap between the Parties</b> | Protech, through Quantum Safety, and ActivateRail (the <b>Parties</b> ) overlap in the supply of rail safety and site management and supervision services in New South Wales and Queensland.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| <b>Reasons for determination</b>   | <p>When making a determination in Phase 1, the Australian Competition and Consumer Commission (<b>ACCC</b>) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the <b>Act</b>). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers.</p> <p>For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's <a href="#">merger assessment guidelines</a> and <a href="#">interim merger process guidelines</a>.</p> <p>In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, publicly available information and information from third parties.</p> <p>The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings.</p> <ul style="list-style-type: none"> <li>Quantum Safety and ActivateRail do not appear to be close competitors.</li> <li>The merged firm would likely continue to face competition from multiple alternative suppliers of rail safety and site management and supervision services.</li> </ul> <p>The ACCC also received concerns regarding Protech's ability to</p> |

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|                                | bundle the supply of rail safety and site management and supervision services with labour hire services. The ACCC considers that Protech is unlikely to have the ability to engage in anti-competitive bundling or tying due to the presence of from multiple alternative suppliers of rail safety and site management and supervision services.                                                                                                                                                                                                              |
| <b>Applications for review</b> | A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal. |

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)  
of the Act**